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Superior Court of California
County of Los Angeles
10/05/2026
David W. Slayton, Executive Officer / Clerk of Court
By: R. Ramirez Deputy

Derrick LaMont Beverly
Plaintiff, In Propria Persona Sui Juris
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STANLEY-MOSK SUPERIOR COURTHOUSE
OF THE
STATE OF CALIFORNIA
IN THE
COUNTY OF LOS ANGELES
JURISDICTION- CENTRAL DISTRICT

DERRICK LAMONT BEVERLY *Plaintiff / Respondent,* **v.** **FOX NORMANDIE APARTMENTS, LP, et al.,** *Defendants / Petitioner.*	**Case No. 22STUD06657** **AMENDED EXPANDED STATEMENT OF DAMAGES, DEMAND, AND RELIEF [CALCULATION AND TAX-TREATMENT SCENARIOS ARE EXPRESSLY SUBJECT TO PROOF, RECOVERABILITY, AND APPLICABLE LAW]**

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DEFAULT SECTION

I. PURPOSE, SCOPE, AND EVIDENTIARY CONTROL

Plaintiff Derrick LaMont Beverly, appearing in propria persona, submits this damages statement as a quantified demand and preservation instrument. It does not convert an unsupported theory into an adjudicated claim, does not concede that every listed category is presently recoverable in this unlawful-detainer matter, and does not waive the separate threshold issues concerning service, default, jurisdiction, postjudgment relief, or appellate review. Each monetary figure is therefore classified as (a) documented loss, (b) working estimate, or (c) scenario value requiring proof before submission as an adjudicative fact.

The governing calculation rule is anti-duplication: no category may be recovered twice merely because the same injury can be described under multiple legal theories. Statutory multiples, punitive damages, interest, fees, costs, equitable relief, and tax consequences are displayed separately from compensatory loss so that the Court can accept, reject, or modify each component without contaminating the remainder of the ledger.

II. ECONOMIC / SPECIAL DAMAGES — WORKING LOSS LEDGER

The present working economic principal is $880,000. The amount is the arithmetic sum of the line items below, not a finding that each item is legally recoverable. The evidentiary gate for each item is source-document proof, causation, reasonable certainty, mitigation, and absence of duplication.

Category	Working Principal	Formula / Proof Control	Classification
Relocation and storage	$55,000	Working estimate; replace with receipts/invoices where available	ESTIMATE / VERIFY
Emergency housing / transitional shelter	$40,000	Working estimate; reconcile to lodging/payment records	ESTIMATE / VERIFY
Housing-subsidy / voucher-related claimed loss	$275,000	Scenario estimate only; requires agency records, eligibility, causation, duration, and mitigation proof	ESTIMATE / VERIFY

Personal property loss / replacement	$30,000	Working estimate; requires inventory, ownership, condition, and replacement-value evidence	ESTIMATE / VERIFY
Past lost income / work disruption	$65,000	Working estimate; reconcile to wage/tax/employment records	ESTIMATE / VERIFY
Transportation / displacement expenses	$18,000	Working estimate; reconcile to receipts/mileage/logs	ESTIMATE / VERIFY
Banking / financial interruption	$12,000	Working estimate; avoid double counting interest/credit components	ESTIMATE / VERIFY
Digital / technology interruption	$30,000	Working estimate; requires device/service/replacement evidence	ESTIMATE / VERIFY
Education / training disruption	$50,000	Working estimate; requires enrollment, payment, interruption, causation evidence	ESTIMATE / VERIFY
Medical continuity / treatment-related economic loss	$55,000	Working estimate; tax treatment depends on underlying physical injury/sickness and prior deductions	ESTIMATE / VERIFY
Credit / borrowing-cost harm	$90,000	Scenario estimate; prove with actual denials, rate differential, balances, and term	ESTIMATE / VERIFY
Housing application / collateral housing harm	$70,000	Working estimate; prove actual applications, fees, denials, incremental costs	ESTIMATE / VERIFY
Evidence preservation / compliance / monitoring costs	$25,000	Recoverability depends on authority and proof; segregate taxable costs/fees	ESTIMATE / VERIFY
Mitigation, applications, filing/service outlays	$20,000	Only actual recoverable costs should be claimed as costs	ESTIMATE / VERIFY
Future benefits / insurance-related claimed loss	$45,000	Scenario estimate; discount future losses to present value where required	ESTIMATE / VERIFY
TOTAL WORKING ECONOMIC PRINCIPAL	$880,000	Σ line items	CONTROL TOTAL

III. INTEREST — LEGALLY SEGREGATED FROM PRINCIPAL

Interest is not embedded in the principal. For illustration only, simple interest on $880,000 at 10% for approximately 3.69 years would be $I = P \times r \times t = \$880{,}000 \times 0.10 \times 3.69 = \$324{,}720$. This is a sensitivity calculation, not a representation that prejudgment interest automatically runs at 10% on every category or from the lockout date. Any prejudgment-interest claim must be tied to the applicable statute, certainty/liquidation rules, and legally correct accrual date. Postjudgment interest is a separate question.

IV. NON-ECONOMIC / GENERAL DAMAGES — SCENARIO, NOT DUPLICATIVE MULTIPLIER

Emotional distress / pain and suffering - working demand: $650,000.

Dignitary / autonomy harm - working demand: $125,000.

Community disruption / stigma - working demand: $80,000.

Privacy / security harm - working demand: $100,000.

The non-economic working subtotal is $955,000. No automatic "aggravation multiplier" is included in the control total. If a per-diem or multiplier methodology is later used for advocacy, it must be presented as a demonstrative valuation method supported by admissible evidence—not as an independent additional injury stacked on top of the same emotional-distress loss.

V. STATUTORY, CIVIL-RIGHTS, TREBLE, AND PUNITIVE CLAIM GATES

Any Fair Housing Act, Unruh Act, Ralph Act, Bane Act, RICO, constitutional, punitive, civil-penalty, or fee-shifting theory must be pleaded and proved element by element against the proper defendant before its remedy is placed into the recoverable total. Treble damages are not a generic multiplier. Under 18 U.S.C. § 1964(c), for example, trebling applies only if a civil RICO

claim is legally available and proven, and the recoverable business/property injury is identified. Punitive damages likewise remain a separate remedy subject to California Civil Code section 3294, due-process limits, and proof concerning the defendant's financial condition. No treble or punitive figure is therefore included in the verified compensatory control total merely because a mathematical multiplier can be calculated.

VI. EQUITABLE / RESTORATIVE RELIEF — NONCASH REMEDIES

Requests concerning record correction, housing-related agency relief, declaratory relief, injunctive relief, evidence preservation, or other restorative measures should be stated as remedies rather than monetized and added to damages unless a distinct compensable economic loss is proven. This avoids artificial inflation and preserves the Court's ability to fashion lawful equitable relief.

VII. TAX CHARACTERIZATION AND IRS COMPLIANCE — NO FICTIONAL "MANDATED DEDUCTION"

Federal tax treatment turns on what the judgment or settlement payment replaces. As a general control, punitive damages and interest are ordinarily includible in gross income; lost wages or lost profits are generally taxable; and nonphysical emotional-distress damages are generally taxable except for qualifying medical-expense components. By contrast, compensatory damages received on account of personal physical injuries or physical sickness may fall within 26 U.S.C. § 104(a)(2), subject to the tax-benefit rule for previously deducted medical expenses. Therefore this pleading does not represent any flat 35% rate, "IRS gross-up," indemnity, or judicial tax allocation as automatically required by federal law.

For settlement-planning only, the tax sensitivity equation is Estimated Federal Tax = Taxable Allocation × Assumed Marginal Rate. Because the taxable allocation and the taxpayer's marginal rate are not established here, the pleading preserves a variable-rate model rather than fabricating a mandatory deduction. Exhibit F shows 24%, 32%, and 37% federal sensitivity bands; those bands are scenarios, not tax advice and not a substitute for return-specific computation. California tax, employment-tax treatment, basis recovery, attorney-fee deductions,

information reporting, and any prior medical-expense deductions must be determined from the final characterization and the taxpayer's actual records.

VIII. EVIDENTIARY RECONCILIATION, ADVERSE-FACT, AND ANTI-DUPLICATION

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CONTROLS

Before any number is represented as proven, Plaintiff should reconcile it to an identified source: receipt, invoice, bank statement, housing-agency record, wage/tax record, medical billing record, credit denial or pricing document, property inventory, declaration, deposition, or admissible business record. The adverse-fact audit must identify contrary records, mitigation, benefits received, replacement payments, insurance, subsidy continuation, alternative causation, speculative future periods, and any overlap between economic, statutory, and non-economic categories.

IX. COMPUTATIONAL CONTROL TOTALS

Working economic principal: $880,000. Working non-economic demand scenario: $955,000. Combined compensatory scenario before any statutory multiples, punitive damages, fees, costs, or interest: $1,835,000. Illustrative simple-interest sensitivity on economic principal only, using the expressly nonconclusive assumptions above: $324,720. These figures are deliberately separated to prevent double counting.

X. PRAYER / DEMAND

Plaintiff requests only such damages, restitution, statutory remedies, equitable relief, interest, costs, fees, sanctions, and other relief as are lawfully available, properly pleaded, supported by competent evidence, and not duplicative. Plaintiff further requests that any judgment or settlement allocation accurately describe the nature of each payment so that the parties can comply with federal and state tax-reporting obligations, without asking the Court to predetermine tax liability that depends on facts outside the damages record.

XI. RESERVATION AND RELEASE CONTROL

This document is a litigation working pleading and damages demand. It preserves amendment subject to governing procedural rules and evidence. Release for filing should occur only after caption/party verification, service-method verification, legal-theory gate review, arithmetic reconciliation against Exhibit F, source-document reconciliation, and confirmation that no amount is presented as an adjudicated entitlement merely because it appears in a scenario model.

Dated: October 5, 2026

Respectfully submitted,

/s/ *Derrick LaMont Beverly*

DERRICK LAMONT BEVERLY